

TENTATIVE RULING FOR CIVSB2302205
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Griffin v. Speedy Cash, et al

Motion: Motion to Dismiss

Movant: Prescilla Lopez (Lopez/Defendant)

Respondent: Destiny Nicole Griffin (Griffin/Plaintiff)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On January 11, 2023, Plaintiff filed a complaint against Speedy Cash, Curo Management, LLC, Curo Group Holdings Corp, and Prescilla Lopez alleging eight causes of action. On April 7, 2026, the summons was issued. On April 20, 2026, Plaintiff filed Proof of Substitute Service as to Lopez with a service date of March 9, 2026. The declaration of diligence states that prior to substitute service being made, personal service was attempted on February 28, 2026, March 2, 2026, and March 9, 2026.

ANALYSIS

California Code of Civil Procedure Section 583.210,

The summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant. For the purpose of this subdivision, an action is commenced at the time the complaint is filed.

Proof of service of the summons shall be filed within 60 days after the time the summons and complaint must be served upon a defendant. (CCP§583.210(a)(b))

California Code of Civil Procedure Section 583.250,

If service is not made in an action within the time prescribed in this article:

The action shall not be further prosecuted and no further proceedings shall be held in the action.

The action shall be dismissed by the court on its own motion or on motion of any person interested in the action, whether named as a party or not, after notice to the parties.

The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute. (CCP§583.250(a)(1)(2)(b))

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California Code of Civil Procedure Section 583.240 states in pertinent part,

In computing the time within which service must be made pursuant to this article, there shall be excluded the time during which any of the following conditions existed:

Service, for any other reason, was impossible, impracticable, or futile due to causes beyond the plaintiff's control. Failure to discover relevant facts or evidence is not a cause beyond the plaintiff's control for the purpose of this subdivision. (CCP§583.240(d))

While the complaint was filed on January 11, 2023, the summons was not issued until April 7, 2023, making service impossible during this three-month period. Lopez does not address Plaintiff's inability to serve the summons during this period and there is no evidence that the delay in issuing the summons was due to Plaintiff's conduct or that Plaintiff had any control over when the issuance occurred. Issuance of the summons was beyond Plaintiff's control.

From January 11, 2023, to April 7, 2023, it was impossible for Plaintiff to serve Lopez with the summons, due to causes beyond Plaintiff's control. Thus, under section 583.240, subdivision (d), the three-year service deadline was tolled during the period from January 11, 2023 to April 7, 2023. Plaintiff therefore had until April 7, 2026, to serve Lopez with the summons and complaint. Lopez was timely served on March 9, 2026.

RULING

1. Defendant's Motion to Dismiss is DENIED.
2. Movant to give Notice.